

Tentative Rulings
August 17, 2026
Department 44
2:30 p.m.

*****IMPORTANT – PLEASE READ*****

The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, remote appearances are strongly encouraged utilizing WebEx.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 between 2:20 and 2:30 p.m.

The access code is 2481 082 7484. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called;**
- 2. Please do not place the call on hold;**
- 3. Minimize all background noise during your call;**
- 4. Please identify yourself, each time, prior to speaking with the court;**
- 5. Disconnect when the court has completed your case or cases;**
- 6. The court prohibits the recording of these proceedings**

CONSERVATORSHIPS

CONSERVATORSHIP OF ANDY CUTHBERTSON

CASE NUMBER: 24PC-0032700

This matter is on calendar for hearing on the First Account and Report of Conservator. The matter has been properly noticed with proof of service on file. The Court notes the Petitioner requests the Public Defender be reappointed as counsel for the Conservatee. The Public Defender was appointed as counsel for the Conservatee on December 2, 2024, and has not been relieved, therefore the request is denied as moot. No objections have been raised. The paperwork appears to

be in order. The Petitions are **GRANTED**. A proposed Order has been submitted and will be executed. The clerk is directed to return the lodged original statements to the submitting party. The next account will cover the period from March 10, 2026, through March 9, 2028, and is required to be filed no later than June 12, 2028. This matter is set for **Monday, June 26, 2028, at 2:30 p.m. in Department 44** for hearing on the Second Periodic Account and Report of Conservator. The Court confirms the future hearing date of March 13, 2028, for Biennial Review. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JAMES JONES

CASE NUMBER: CVPG19-0030121

This matter is on calendar for confirmation of filing the Final Account and Report of Conservator. This matter is on calendar for hearing on the Final Report of Conservator of the Person and Estate and Sixteenth and Final Account of the Medical Needs Trust of James E. Jones, Petition for Discharge, and Delivery of Assets. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has been lodged with the court and will be executed. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for confirmation of filing Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF KEVIN MASSECAR

CASE NUMBER: CVPG07-0025368

This matter is on calendar for hearing on the Report of Conservator and Tenth Account and Eleventh and Final Account of the Trustee for the Trust Established Under Conservatorship, Petition for Allowance of Fees, Discharge of Conservator and Trustee, and Delivery of Assets. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has been lodged with the court and will be executed. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for confirmation of filing Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF RONALD RAYBURN

CASE NUMBER: 26PC-0033513

This matter is on calendar for further proceedings on a Petition for Appointment of a Temporary Conservator of the Person and Estate. The Court has dispensed with notice to the Conservatee. The matter was previously continued to allow Petitioner to serve the remaining parties by electronic service. Proof of service for all remaining required individuals has been filed; however a new Notice of Hearing has not been filed for today's date. The Court must assume that notice was provided for the prior hearing. Additionally, the documents were served by Petitioner. Service must be performed by someone age 18 or older who is not a party to the action. This is insufficient notice for today's proceedings. The Petition is **DENIED** for lack of service. The Court notes the future date of September 14, 2026, for hearing on a Petition for Appointment of a Conservator of the Person and Estate. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF DYLAN RIES

CASE NUMBER: 26PC-0033493

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person and Estate. The matter has not been properly noticed. There is no proof of service of the Notice of Hearing and Petition for the sibling Kayden, maternal grandparents, or paternal grandparents. Proof of service of the Citation has been filed, however the Citation issued for today's date is incomplete as to items 1 and 3. The Petition contains the following defects:

1. The Petition states that the proposed conservatee has a developmental disability. Thus, it appears that this should be designated as a Petition for Appointment of a Limited Conservator in the Caption. It is so designated in Item 1a.
2. Under item 1, the Petition is incomplete as to what authority Petitioner is seeking as Conservator. Items 1(d)-(l) must be completed as applicable.

An application and order appointing counsel for the Conservatee has not been filed. The Court appoints the Public Defender as counsel for the Conservatee. The Capacity Declaration has been filed and is accepted by the Court. The Court Investigator has requested additional time to complete the investigation and report. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Appointment of a Conservator of the Person and Estate. Petitioner is required to file and serve an amended Petition to address the issues raised above. Additionally, Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. A new Citation is required to be issued and served for the continued hearing date and proof of service filed with the court. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF CECILIA VITAL**CASE NUMBER: 26PC-0033237**

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. The Court notes the Conservatorship was granted on June 15, 2026. The matter is continued to **Monday, December 14, 2026, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. **No appearance is necessary on today's calendar.**

ESTATES

ESTATE OF SANDRA APPENZELLER

CASE NUMBER: 24PB-0032504

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed which indicates the estate is insolvent. The Personal Representative has submitted an Ex Parte Petition for Final Discharge and Order. Considering there are no assets for distribution, the Court will execute the Final Discharge Order. Upon processing of the order, the clerk is directed to vacate any future hearing dates and close the file. **No appearance is necessary on today's calendar.**

ESTATE OF CYNTHIA COMBS

CASE NUMBER: 23PB-0032123

This matter is on calendar for hearing on a Petition for Approval of Proposed Sale of Estate Property, Further Instructions, and Determination that Probate Code Section 10308 Confirmation is not Required. The matter has been properly noticed with proof of service on file. No objections have been raised. Petitioner is required to file a Report of Sale and Petition for Order Confirming Sale of Real Property (Judicial Council form DE-260, adopted for mandatory use) in order to seek the relief requested. Additionally, the Petition is filed pursuant to paragraph 14 of the Court's order dated June 15, 2026. The Court's order dated June 15, 2026, specifically states "[i]f a timely objection to a Notice of Proposed Action regarding an accepted purchase contract is received, Petitioner may set the matter for hearing and request approval, confirmation, or further instructions from the Court." The Petition indicates that no objections have been received, therefore the Petition is **DENIED** as premature. The Court notes the future date of May 17, 2027, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF STEVE CORTEZ

CASE NUMBER: 24PB-0032421

This matter is on calendar for confirmation of filing the Inventory and Appraisal and confirmation of deposit of funds into blocked account. The Inventory and Appraisal has not been filed. No proof of deposit of funds into blocked account has been filed. A Status Report has been filed which indicates additional time is needed before the funds can be deposited. This matter is continued to **Monday, October 19, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal and confirmation of deposit of funds into blocked account. If the documents cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the documents can be filed. Failure to file either the confirmation of deposit and Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file proof of deposit of funds into blocked account, the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of December 28, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF GENE CURL I

CASE NUMBER: 26PB-0033416

This matter is on calendar for further proceedings on a Petition to Determine Succession to Primary Residence. The matter has not been properly noticed. There is no proof of service for any parties entitled to notice. The Petition contains the following defects:

1. Item 5 is incomplete as to whether the decedent died intestate or had a will. The Court notes Item 12 states there is a will; however, attached is a copy of a trust. A trust is not a will. The trust indicates the property is a trust asset.
2. An Inventory and Appraisal has not been attached as requested by item 8.
3. Attachment 11 fails to state facts sufficient to show the property was decedent's primary residence.
4. It is unclear what interest each individual listed in item 13 has in the property.
5. The Petition is incomplete regarding attachment 14.

Considering the subject real property belongs to a trust and trust assets cannot be transferred by way of a Petition to Determine Succession to Primary Residence, the Petition is **DENIED**. The clerk is directed to close the file and vacate any future hearing dates. **No appearance is necessary on today's calendar.**

ESTATE OF DEBRA DOMBERG

CASE NUMBER: 22PB-0031706

This matter is on calendar for Status of Administration. This matter is also on calendar for hearing on an Order to Show Cause Re: Monetary Sanctions issued to the Personal Representative and Counsel for failure to timely close the estate administration and failure to file a Status Report as ordered on August 4, 2025. The matter was previously continued to allow additional time for counsel to obtain the Personal Representative's signature on the required documents. No further documents have been filed in response to the Order to Show Cause or to provide the Court with a status of the estate. **An appearance is necessary on today's calendar to address the Order to Show Cause and to discuss the status of the estate. Failure to appear will result in the imposition of Monetary Sanctions in the amount of \$500.00.**

ESTATE OF ROSS EBSTER

CASE NUMBER: 26PB-0033468

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The matter is set for **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 23, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF FRED FABRICIUS

CASE NUMBER: 25PB-0032978

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, October 12, 2026, at**

2:30 p.m. in Department 44 for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the October 12, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF DEBRA GALVEZ

CASE NUMBER: 25PB-0032842

This matter is on calendar for further proceedings on the First and Final Account and Report of Administrator and Petition for Final Distribution. An amended Petition has been filed which sufficiently addresses the issues raised on June 29, 2026. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has been lodged with the Court and will be executed. This matter is set for **Monday, September 21, 2026, at 2:30 p.m. in Department 44** to confirm the filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF NANCY GRIMMER

CASE NUMBER: 26PB-0033381

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The Court previously determined the matter to be properly noticed. No objections have been raised. The paperwork appears to be in order, with the exception that proof of proper publication has not been filed. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. Proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES HAYES

CASE NUMBER: 22PB-0031502

This matter is on calendar for status of settlement. A Notice of Settlement was filed on November 12, 2025. **An appearance is necessary on today's calendar.**

ESTATE OF NICHOLAS HEREM

CASE NUMBER: 26PB-0033409

This matter is on calendar for further proceedings on a Petition for Probate of Will. An amended Petition has been filed which sufficiently addresses the issues raised on June 29, 2026. The matter has been properly noticed with proof of service on file. The original will has been lodged. Proof of proper publication has not been filed. The Court previously noted that publication must take place in a newspaper of general circulation in the city where the decedent resided. Probate Code Section 8121(b). Proof of publication has been filed for The Intermountain News, however this is not a newspaper of general circulation in Shingletown, California.

Cindy Nordaker has filed an objection. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Probate of Will. Proper proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF XAVIAN HERNANDEZ

CASE NUMBER: 26PB-0033378

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The Court previously found the matter properly noticed with proof of service on file. Duties and Liabilities of Personal Representative has been filed. Proof of publication in The Intermountain News has been filed, however it is insufficient. Publication must take place in a newspaper of general circulation in the city where the decedent resided. Probate Code Section 8121(b). The Intermountain News is not a newspaper of general circulation in Anderson, California. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. Proper proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF CHARLES HUGHES III

CASE NUMBER: 26PB-0033499

This matter is on calendar for hearing on a Petition to Determine Succession to Primary Residence. The matter has not been properly noticed. Proof of service for the beneficiary of The Frederick K. Ashe Special Needs Trust is required to be filed. Additionally, attachment 11 fails to provide facts to show that the property was the decedent's primary residence. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition to Determine Succession to Primary Residence. A new Notice of Hearing is required to be filed and served for the continued hearing date, along with a copy of the Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF REX KLEIN

CASE NUMBER: 25PB-0032908

This matter is on calendar for confirmation of filing the Inventory and Appraisal and further proceedings on the Petition for Order Approving Sale of Real Property to Related Party. The Court previously determined the matter to be properly noticed. No objections have been raised. The Final Inventory and Appraisal filed on July 23, 2026, is accepted by the Court. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was previously executed by the Court.

This matter is also on calendar for Status of Administration. A properly noticed Status Report has been filed which indicates additional time is required before the estate administration can be finalized. The matter is continued to **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If

a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the December 21, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF PATRICK MCDANIEL

CASE NUMBER: 25PB-0032921

This matter is on calendar for further proceedings on the Petition for Final Distribution and Waiver of Accounting. An amended Petition has been filed which sufficiently addresses the issues raised on June 29, 2026. However, the matter has not been properly noticed. A new Notice of Hearing has not been filed for today's date and the proof of service for the guardian ad litem filed on July 21, 2026, fails to indicate a Notice of Hearing was served. The Court notes notice to the Franchise Tax Board and Victim's Compensation Board was not provided until July 6, 2026. The Court will continue this matter to allow Petitioner to provide proper notice to the guardian ad litem and to allow time for the Franchise Tax Board and Victim's Compensation Board to file a claim if necessary. The matter is continued to **Monday, November 9, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Final Distribution and Waiver of Accounting. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on the guardian ad litem. **No appearance is necessary on today's calendar.**

ESTATE OF MARK MORRIS

CASE NUMBER: 25PB-0032937

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed indicating that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, March 1, 2027, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the March 1, 2027, date. **No appearance is necessary on today's calendar.**

ESTATE OF JOYCE MURRELL

CASE NUMBER: 24PB-0032387

This matter is on calendar for further proceedings on the First and Final Account and Report of Administrator and Petition for Final Distribution. An amended Petition has been filed which sufficiently addresses the issues raised on June 29, 2026. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has been submitted and will be executed by the Court. This matter is set for **Monday, September 21, 2026, at 2:30 p.m. in Department 44** to confirm the filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF JUDY PARKER

CASE NUMBER: 26PB-0033511

This matter is on calendar for hearing on a Petition to Determine Succession to Primary Residence. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The clerk is directed to close the file upon processing of the order. **No appearance is necessary on today's calendar.**

ESTATE OF ROGER PRYOR

CASE NUMBER: 26PB-0033489

This matter is on calendar for hearing on a Petition to Determine Succession to Primary Residence. The Petition is incomplete as to item 9(a) 3 or 4. Attachment 11 fails to state facts sufficient to show the property was the decedent's primary residence. Additionally, the Petition is incomplete as to attachment 14. Due to the defects, the Court is unable to determine if proper notice has been provided. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition to Determine Succession to Primary Residence. An amended Petition is required to be filed to address the issues raised above. A new Notice of Hearing is required to be filed and served for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF MARY RICHMAN

CASE NUMBER: 26PB-0033455

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The Court previously determined the matter to be properly noticed with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The matter is set for **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 16, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF NATHAN RICKE

CASE NUMBER: 26PB-0033454

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. Letters will issue upon confirmation of issuance of a bond in the amount of \$60,000.00. The matter is set for **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 16, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to

comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF DORIS RODGERS

CASE NUMBER: 24PB-0032535

This matter is on calendar for hearing on an Ex Parte Application for Order Shortening Time of a Motion for Consolidation of Case 32945 with Case 32535 for Purposes of Trial. The matter has been properly noticed with proof of service on file. The Court notes the application indicates Mr. Curtain is objecting to the request, however a formal objection has not been filed. The paperwork appears to be in order. The Ex Parte Application is **GRANTED**. A proposed Order has been lodged with the court and will be executed.

Consequently, this matter is also on calendar for hearing on a Notice of Motion and Motion for Consolidation of Case 32945 with case 32535 for Purposes of Trial. The matter has been properly noticed pursuant to the Order granting order shortening time for notice. The Court notes the application indicates Mr. Curtain is objecting to the motion, however a formal objection has not been filed. The paperwork appears to be in order. The Motion is **GRANTED**. Shasta County case 32535 and case 32945 shall be consolidated for the purposes of trial on the Petitions for Order Directing Return of Possession of Real and Personal Property under Probate Code Section 850. A proposed Order has been lodged with the court and will be executed.

This matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for status of the 850 Petitions. **No appearance is necessary on today's calendar.**

ESTATE OF VALERIE SCHMIDT

CASE NUMBER: 26PB-0033425

This matter is on calendar for hearing on an amended Petition for Letters of Administration. The matter has been properly noticed with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. Letters will issue upon confirmation of issuance of a bond in the amount of \$90,000.00. The matter is set for **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 16, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF ROBERT TORNAL

CASE NUMBER: 24PB-0032316

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered on April 20, 2026. The matter is continued to **Monday, October 5, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of

an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the October 5, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF VIRGINIA WALTERS

CASE NUMBER: 25PB-0032987

This matter is on calendar for hearing on the Waiver of Accounting and Petition for Final Distribution. The will purports to devise the entirety of the estate to the trustee of the William C. Walters and Virginia M. Walters Revocable Trust. As a result, the trustee is the only individual entitled to distribution and the assignments of interest and waiver of accountings are without effect. Only the trustee of the trust can waive the requirement of an accounting. Consequently, the proposed distribution is incorrect. The Court notes the trustee has not been identified. Additionally, the notice to the Franchise Tax Board has not been provided as required by Probate Code Section 9202(c). Item 8 of the Petition states that notice to the Franchise Tax Board is not required, however this notice provision is mandatory.

Due to the defects, the Court is unable to determine if proper notice has been provided. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Waiver of Accounting and Petition for Final Distribution. An amended Petition is required to be filed to address the issues raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. An acknowledged statement by the trustee accepting the property under the terms of the trust is required to be filed in compliance with Local Rule 15.10(L). **No appearance is necessary on today's calendar.**

ESTATE OF ROBERT WOLOZ

CASE NUMBER: 26PB-0033475

This matter is on calendar for hearing on a Petition for Probate of Will. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The Will is admitted to probate, and the original will shall be filed. No bond is required by the will, and letters shall issue. The matter is set for **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 16, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF GEORGE ZIRKLE

CASE NUMBER: 24PB-0032599

This matter is on calendar for further proceedings on a Petition for Order Under Probate Code § 850 and Confirmation of Estate Ownership of Uncollected Official Check. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Confirmation of Estate Ownership is **GRANTED**. A

proposed order has been submitted and will be executed by the Court. The Court notes the future date of November 16, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

TRUSTS

IN RE: ASHTON ROBERT LINDLEY SPECIAL NEEDS TRUST

CASE NUMBER: 26PB-0033232

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed on August 3, 2026, is accepted by the Court. The bond is insufficient by \$270,126.10. The Trustee, or Counsel are **ORDERED** to file an ex parte application to increase the bond. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for status of the bond. The Court notes the future date of May 10, 2027, for confirmation of filing the First Account and Report of Trustee. **No appearance is necessary on today's calendar.**

IN RE: THE CONWAY FAMILY TRUST

CASE NUMBER: 25PB-0033041

This matter is on calendar for hearing on an Order to Show Cause Re: Monetary Sanctions and for further proceedings to confirm filing of accounting. At the hearing on September 22, 2025, the Court granted a Petition to Compel Accounting and ordered Patricia Howard to prepare a trust accounting for the period of March 19, 2019, to May 27, 2025. No accounting has been filed. The Order to Show Cause was issued to Patricia Howard for her failure to appear at the prior hearing on June 29, 2026 and for her failure to provide the Trust accounting as previously ordered by the Court. No response to the Order to Show Cause has been filed. **An appearance is necessary on today's calendar to provide the Court with a status of the accounting. A failure to appear or to provide an adequate explanation for the failure to file the accounting will result in the imposition of sanctions.**

IN RE: THE GREGG CONWAY LIVING TRUST, AS FIRST AMENDED IN FULL

CASE NUMBER: 26PB-0033478

This matter is on calendar for hearing on a Petition to Compel Accounting and to Surcharge Trustee for Breach of Trust. The matter has been properly noticed. The Petition is based on the purported misappropriation of a Bank of America account by former Trustee Patricia Howard. The Petition shows that the Bank of America account was an asset of Gregg Conway as an individual. It does not establish that the Bank of America account was a Trust asset. The Petition provides there is a pour-over will but does not show that the will has been probated and that the Bank of America account has been distributed to the Trust. Based on the foregoing, it appears that a Trust Petition is premature. **An appearance is necessary on today's calendar to discuss the character of the Bank of America account; specifically, whether it is a Trust asset or if it is an asset of Gregg Conway as an individual.**

IN RE: HENRY J. KELMAN IRREVOCABLE TRUST

CASE NUMBER: 26PB-0033474

This matter is on calendar for hearing on a Petition to Compel Accounting and Providing Information for the Henry J. Kelman Irrevocable Trust. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed order has been lodged with the court and will be

executed. The matter is continued to **Monday, November 16, 2026, at 2:30 p.m. in Department 44** for status of the accounting. **No appearance is necessary on today's calendar.**

IN RE: PHILIP H. GREENLEE REVOCABLE TRUST

CASE NUMBER: 26PB-0033507

This matter is on calendar for hearing on a Verified Petition for Determination of Ownership of Disputed Brokerage Account, Declaratory Relief, and Instructions to Trustee. The matter has not been properly noticed. The Petition seeks a determination of ownership of property. As such, the notice provisions of Probate Code Section 851 apply. Here, the Notice of Hearing fails to comply with Probate Code Section 851(c). Petitioner is required to use Mandatory Judicial Council Form DE-115 and 30 days notice is required. Additionally, no summons has been served on any party claiming an interest in, or having possession of, the property in question as required by Probate Code Section 851. The matter is continued to **Monday, October 12, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Verified Petition for Determination of Ownership of Disputed Brokerage Account, Declaratory Relief, and Instructions to Trustee. Petitioner is required to file and serve a summons and Notice of Hearing on Petition to Determine Claim to Property for the continued hearing date, along with a copy of the Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: ZANE FAMILY TRUST

CASE NUMBER: 26PB-0033484

This matter is on calendar for hearing on a Petition for Order Confirming Trust Assets. This matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears in order. The Court finds that Petitioner has established that the real property at issue is held by the Trust. The Petition is **GRANTED**. An order was submitted and will be executed by the Court. The clerk is instructed to close the file upon the processing of the order. **No appearance is necessary on today's calendar.**